

1 ENGROSSED HOUSE  
2 BILL NO. 3552

By: Maynard and Gise of the  
House

3 and

4 Bullard of the Senate  
5  
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7 An Act relating to children; authorizing childcare  
8 providers to charge differential; prohibiting the  
9 Department of Human Services from penalizing or  
10 taking adverse action against providers; requiring  
11 providers to apply differential uniformly; directing  
12 the Department to promulgate rules; providing for  
13 codification; and declaring an emergency.

14 BE IT ENACTED BY THE PEOPLE OF THE STATE OF OKLAHOMA:

15 SECTION 1. NEW LAW A new section of law to be codified  
16 in the Oklahoma Statutes as Section 431 of Title 10, unless there is  
17 created a duplication in numbering, reads as follows:

18 A. Upon approval by the Administration for Children and  
19 Families, a licensed or permitted childcare provider serving a child  
20 eligible for the Department of Human Services' Child Care Subsidy  
21 Program may charge the child's parent or legal guardian the  
22 difference between:

23 1. The Department's subsidy reimbursement rate applicable to  
24 the child; and

1        2. The provider's standard private tuition rate for the same  
2 age group and schedule.

3        B. The Department shall not:

4        1. Prohibit, restrict, or penalize a provider for charging a  
5 differential authorized pursuant to this act; or

6        2. Take adverse action against a provider, including, but not  
7 limited to, disqualification, enhanced monitoring, subsidy  
8 enrollment restrictions, or corrective action, solely due to the  
9 provider charging a differential pursuant to this act.

10       C. Providers who charge a differential shall apply the  
11 differential uniformly to all similarly situated families.

12       D. The Department shall promulgate rules, update subsidy  
13 agreements, and provide guidance documents to comply with the  
14 provisions of this act.

15       SECTION 2. It being immediately necessary for the preservation  
16 of the public peace, health or safety, an emergency is hereby  
17 declared to exist, by reason whereof this act shall take effect and  
18 be in full force from and after its passage and approval.

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1 Passed the House of Representatives the 25th day of March, 2026.

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3 \_\_\_\_\_  
4 Presiding Officer of the House  
5 of Representatives

6 Passed the Senate the \_\_\_\_\_ day of \_\_\_\_\_, 2026.

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9 Presiding Officer of the Senate